FORMAL CUSTOMER COMPLAINT

Administrative impartiality, partner due diligence and vendor-neutrality in Gatton AgTech programs and MT25014

To	Director-General, Queensland Department of Primary Industries – Customer Complaints
From	Christopher W. Laudando, President & Founder, Laudando & Associates LLC
Date	2 September 2026
Submission channel	customercomplaints@dpi.qld.gov.au
Status	Stage 1 – internal complaint drafted to preserve external review rights

Requested handling: Please allocate this complaint to a senior officer outside the Field AgTech/Gatton program reporting line and outside any officer who has publicly endorsed the Western Growers partnership. The request is made to protect actual and perceived impartiality, not as an allegation of personal misconduct.

Summary Request

Please register the attached as a formal customer complaint and provide the complaint reference, responsible review officer, applicable response timeframe and internal-review rights. Please also preserve the records identified in section 8. Because the complaint concerns the design and mobilisation of an active levy-funded validation project, I request prompt interim safeguards and a substantive written response.

1. Complaint in one paragraph

DPI has placed Western Growers in an influential cross-border AgTech network and named it as a partner around a project intended to independently validate physical weed-control technologies. Yet DPI has not publicly explained whether it examined an alleged incident at its own 2025 Gatton Showcase in which Western Growers' Senior Commercialization Director made an extreme and commercially damaging safety representation about a competing laser-weeding technology to Australian grower prospects. This complaint asks DPI to establish what happened, disclose the partner's actual role,

identify and manage perceived conflicts, preserve records, and ensure that MT25014 selection and evaluation remain demonstrably independent.

2. Complainant and standing

- Christopher W. Laudando is President and Founder of Laudando & Associates LLC, based in Chico, California, USA. Contact: chris@laudando.com.
- L&A developed L&Aser, a photonic physical weed-control platform, and exhibited it at the 15–16 October 2025 Gatton AgTech Showcase.
- L&A participated because the Showcase was publicly presented as a direct-engagement platform through which international manufacturers and Australian growers could test market fit and discuss adoption.
- L&A and Australian growers/integrators were directly affected by statements and institutional decisions made within this publicly supported technology-adoption setting.

3. Facts and allegations

3.1 The publicly funded Gatton setting

The 2025 Showcase was held at Gatton Smart Farm on 15–16 October 2025. Public material described its purpose as allowing growers to see global AgTech working in real conditions and speak directly with manufacturers about productivity and profitability. AUSVEG later stated that the event was funded using vegetable and onion R&D levies, Australian Government contributions and Queensland DPI co-investment, and delivered with industry partners.

3.2 Alleged Western Growers intervention

At the Showcase, L&A alleges that Ben Palone, identified publicly as Western Growers' Senior Commercialization Director, entered L&A's booth and told Australian grower prospects that L&Aser could "blind a bus full of kids." L&A understands that direct witnesses can identify the words used, persons present and immediate reaction. The statement concerned product safety in the precise setting where growers were deciding which technology suppliers to trust and pursue.

L&A is not aware that Mr Palone had inspected L&Aser's safety architecture, reviewed its engineering risk controls, possessed a laser-safety assessment, or stated a technical basis for the representation. L&A is also not aware of a DPI-led incident investigation, an opportunity to respond before the representation spread, a correction to affected growers, or a documented partner-performance response. These are matters for DPI to verify from records and witnesses.

3.3 Subsequent institutional role

DPI's current Gatton Smart Farm page lists MT25014 as validating mechanical, electrical and laser weeders to increase grower confidence and identifies Western Growers as providing an extensive global network of AgTech manufacturers. Queensland's 27 August 2026 release describes MT25014 as a three-year DPI-led, Hort Innovation levy-funded project and names Western Growers, Reservoir Farms and

Cornell University as partners. The tender advertised a structured validation gateway, independent benchmarking and objective comparison.

3.4 Public relationships and new California–Queensland corridor

Western Growers publicly hosts a Carbon Robotics laser-weeding case study. In an August 2026 AUSVEG recording, its representatives discussed Carbon in highly favorable terms while also stating that additional laser-weeding competition would benefit cost competitiveness. Promotion of one vendor is not wrongdoing by itself. It does, however, make disclosure and recusal especially important if the same organisation can source, screen, introduce, discuss or evaluate competing suppliers in an officially supported program.

On 2 September 2026, Queensland announced a five-year agreement with California whose pillars include technology demonstrations, pathways to commercialisation, industry engagement and market access. The attached Western Growers announcement places Mr Palone at the Sacramento signing. L&A does not claim the photograph itself proves improper motive. It shows the practical importance of clarifying how DPI selects and supervises intermediaries within this corridor.

4. Administrative concerns

- **Procedural fairness.** A supplier should not be adversely affected within a government-supported adoption program by an untested safety assertion without notice, evidence, a right to respond and reasoned resolution.
- **Impartiality and perceived conflict.** A reasonable observer could question whether a partner that promoted one laser-weeding vendor and allegedly disparaged another can influence supplier access without disclosed safeguards.
- **Due diligence and partner management.** DPI should be able to show what it knew about the Gatton incident before expanding or celebrating the relationship.
- **Transparency.** DPI has not publicly identified Western Growers' decision rights, selection influence, communications remit, conflicts or recusal obligations under MT25014.
- **Proper use of public resources.** Levy funds, Commonwealth contributions, Queensland co-investment, government facilities and official credibility must serve objective grower benefit, not inadvertently amplify supplier favoritism.
- **Administrative consistency.** DPI's promise to find and validate the best AgTech for growers should be reconciled with the treatment of a technology that had already reached Gatton and attracted grower interest.

5. Applicable public-administration standards

The Public Sector Ethics Act 1994 identifies integrity and impartiality, promoting the public good, commitment to the system of government, and accountability and transparency as principles fundamental to good public administration. The Queensland Public Service Code of Conduct states that officials should provide accurate and impartial advice, treat people equitably and consistently,

demonstrate procedural fairness and natural justice, and conduct government dealings with private industry with a high level of integrity. DPI's complaint procedure also requires fair and impartial handling. This complaint asks DPI to apply those standards to its own decisions and oversight—not to regulate private speech in the abstract.

6. Questions requiring findings

1. In what capacity did Mr Palone attend the 2025 Gatton Showcase, who invited or funded that attendance, and what brief or authority did he have?
2. Does Western Growers admit, deny or qualify the alleged statement? What documents or witnesses support its position?
3. What technical basis, if any, supported the safety representation? Was L&Aser inspected or its risk controls reviewed?
4. What did DPI staff learn at the time, what records were made, and what was communicated to Hort Innovation, AUSVEG or other delivery partners?
5. Was L&A given a meaningful opportunity to respond, and were growers who heard the statement given any correction or independent safety information?
6. Were equivalent safety criteria and communications applied to every laser or energy-based weed-control supplier?
7. What exact role does Western Growers have in MT25014 candidate sourcing, eligibility, shortlisting, protocols, scoring, interpretation, publication and grower introductions?
8. Who has final decision authority over the technology portfolio, and what objective, published criteria constrain that discretion?
9. What commercial, advisory, promotional, financial or advocacy relationships with candidate vendors were declared by every project partner?
10. What recusal and independent-review rules apply where a partner has promoted, advised or previously commented adversely on a candidate?
11. Is L&Aser eligible for MT25014? If not, what pre-existing written criterion excludes it, who decided, and what review right exists?
12. Does unresolved private patent litigation operate as an eligibility bar? If so, how does DPI prevent one vendor's litigation strategy from determining public validation access?
13. Will DPI publish protocols before testing, release sufficient data for scrutiny, allow vendors to correct factual errors, and provide written reasons for exclusion?

7. Outcomes requested

1. **Independent complaint investigation.** Appoint a senior reviewer outside the involved program chain; interview direct witnesses separately; invite responses from Mr Palone, Western Growers and relevant DPI/Hort Innovation staff; and make evidence-based findings.

2. **Limited interim recusal.** Until the complaint is resolved, ensure Western Growers and any officer whose prior involvement creates a reasonable perception issue do not decide, recommend or communicate externally about L&A/L&Aser eligibility or evaluation.
3. **Published governance.** Disclose MT25014 partner scopes, decision rights, candidate criteria, conflict-management framework, recusal process, protocol-development process and vendor-review rights, subject only to lawful redaction.
4. **Equal opportunity.** Invite L&A to submit L&Aser for consideration under the same pre-published criteria as other technologies, without treating unadjudicated litigation as a proxy for technical merit or safety.
5. **Corrective communication.** If the safety statement is found unsupported or misleading, provide a proportionate written correction to the growers and project partners who received or acted on it.
6. **Reasoned decision.** Provide findings on each question, the evidence relied upon, action taken, and internal/external review rights.
7. **No retaliation.** Confirm that making this complaint will not disadvantage L&A, its Australian partners, witnesses or growers in access to future DPI programs.

8. Records preservation request

Please immediately preserve emails, attachments, calendars, meeting notes, Teams/Slack/SMS or other business messages, incident/risk records, photographs, video, complaints, briefing notes, procurement documents, scopes, conflict declarations and communications with Hort Innovation, AUSVEG, Western Growers, Reservoir Farms, Cornell University, Carbon Robotics and event participants for 1 September 2025 to the present containing or concerning:

- Laudando; L&A; L&Aser; laser; eye safety; blind; bus; kids/children;
- Carbon Robotics; Western Growers; Ben Palone; Walt Duflock;
- Gatton AgTech Showcase; AS20007; MT25014; physical weed technologies;
- candidate, shortlist, eligibility, vendor, manufacturer, patent, infringement, litigation, conflict, recusal, safety, risk or incident.

This is a preservation request, not a demand that confidential or exempt records be immediately disclosed. L&A expects to make a focused administrative-access or RTI request separately if necessary.

9. Fair process requested for all parties

L&A asks DPI to give every named person and organisation an opportunity to respond, to distinguish evidence from inference, and to correct L&A if the record proves any statement wrong. L&A does not ask DPI to determine patent validity or infringement, condemn lawful relationships with Carbon Robotics, or infer intent from the timing of public announcements. The requested finding is whether DPI's administrative safeguards and response were fair, impartial, transparent and adequate.

Evidence schedule

The following items should accompany or follow the submission. Items marked "available from complainant" are not represented here as independently verified public facts.

Item	Evidence	Status / purpose
E1	Direct witness statements identifying who heard the Gatton safety representation, the exact words used, date, place and subsequent commercial effect.	Available from complainant; obtain signed, uncoached statements.
E2	Contemporaneous emails/messages with Hort Innovation, DPI, event organisers, growers or integrators following the Gatton incident.	Available from complainant; attach complete threads with metadata.
E3	Gatton exhibitor records, photographs and program materials showing L&Aser participation on 15–16 October 2025.	Public materials plus complainant records.
E4	AUSVEG podcast recording and timestamped transcript of Western Growers' statements regarding laser-weeding competition and Carbon Robotics.	Public recording; preserve locally.
E5	Western Growers' Carbon Robotics case study and related public promotional material.	Public source; relevance is relationship/context, not wrongdoing by itself.
E6	MT25014 tender, contract/scope, partner roles, candidate-selection criteria, conflict declarations, protocols and records.	Requested from Hort Innovation/DPI; core institutional evidence.
E7	Australian patent-litigation originating process, pre-action demands, evidence regarding collection/disposition of L&Aser modules, and proof of market withdrawal.	Available from complainant; confidential legal review recommended before filing publicly.
E8	Western Growers announcement and Queensland Government release concerning the five-year California–Queensland framework.	Public source; screenshot attached as Annexure A.
E9	Grower communications showing independent market perception and any changed purchase/trial decisions.	Available from complainant; obtain consent and redact personal data unless needed.

Public sources

Accessed 2 September 2026. Hyperlinks are provided for verification; the attached image is reproduced separately as an annexure.

1. Queensland Government, “International collaboration signals new weapons in the war on weeds” (27 Aug 2026)
2. Queensland Government, “Trade Mission secures primary industries innovation agreement with Californian Government” (2 Sep 2026)
3. Queensland DPI, Gatton Smart Farm – programs and partners, including MT25014 and Western Growers
4. AUSVEG, “Gatton AgTech Showcase judged a success” (9 Dec 2025)
5. AUSVEG, 2025 Gatton Showcase announcement and stated purpose
6. Hort Innovation tender advertisement, MT25014 – independent benchmarking and objective comparison
7. Queensland Government, Public Sector Ethics Act 1994 (current)
8. Queensland Government, Public Service Code of Conduct – accountability and transparency
9. Queensland DPI, complaints process
10. Queensland Ombudsman, complaints process
11. Western Growers, Innovation Case Studies – Carbon Robotics case study
12. AUSVEG Vegalogue, “R&D: Part 2 Farming automation and technology” – Western Growers discussion (17 Aug 2026)

Stage 2 – Queensland Ombudsman escalation

Ombudsman issues

1. Whether DPI used an independent reviewer despite the complaint involving an active program chain and publicly endorsed partner relationship.
2. Whether DPI gathered and tested direct witness evidence about the Gatton safety representation rather than accepting an institutional assurance.
3. Whether DPI disclosed enough about Western Growers' role and conflicts to explain how independence under MT25014 is protected.
4. Whether DPI gave L&A procedural fairness, addressed each material question, provided intelligible reasons and identified review rights.
5. Whether interim and final safeguards were proportionate to the risk that an influential partner could shape the treatment of an individual supplier.
6. Whether DPI's actions were consistent with the Public Sector Ethics Act principles and Code of Conduct standards concerning impartial advice, equitable treatment, natural justice and transparency in dealings with private industry.

Ombudsman outcome requested

I request that the Ombudsman obtain the relevant file, assess DPI's administrative actions and complaint handling, and recommend any reinvestigation, reasons, disclosure, conflict-management, recusal, corrective communication or systemic improvement necessary to ensure vendor-neutral administration of MT25014 and related AgTech programs.

Annexure A – Western Growers announcement

Screenshot supplied by the complainant. It records Western Growers' public statement that its Senior Commercialization Director joined the Queensland Premier at the Sacramento signing ceremony for a five-year California–Queensland framework on agricultural innovation, biotechnology and productivity.

